

DEPARTMENT OF VETERANS AFFAIRS

**Justification and Approval (J&A)
For
Other Than Full and Open Competition**

Acquisition Plan Action ID: 36C250-26-AP-0268

1. Contracting Activity:

Department of Veterans Affairs, NCO 10 in Indianapolis Indiana, on behalf of VISN 10, Louis Stokes Cleveland VA Medical Center.

2237: 541-26-3-2406-0009

2. Nature and/or Description of the Action Being Approved:

This acquisition is for a new firm-fixed-price contract for municipal solid waste collection, transportation, disposal, and associated recycling services at the Louis Stokes Cleveland VA Medical Center and associated locations in Cleveland, Ohio. The action will be awarded as a new stand-alone contract (not a modification) to HAMILTON ALLIANCE, INC., with a single 12-month period of performance from April 7, 2026, through April 6, 2027, and no unpriced options are included in this justification.

3. Description of Supplies/Services Required to Meet the Agency's Needs:

The Department of Veterans Affairs requires municipal solid waste collection, transportation, disposal, and associated recycling services for the Louis Stokes Cleveland VA Medical Center and associated locations in Cleveland, Ohio, including the VA Annex, Greater Cleveland Fisher House, and Transitional Residence (TR) House. Services include furnishing and hauling one 40-yard trash compactor at Wade Park five times per week (approximately 260 hauls per year), one 30-yard recycling compactor at Wade Park three times per week (approximately 156 hauls per year), one 20-yard open-top trash container at Wade Park once per month (12 hauls per year), one 6-yard trash dumpster at the TR House once per week (52 hauls per year), one 6-yard recycle dumpster at the TR House once per week (52 hauls per year), one 8-yard trash dumpster at the Learning Exchange five times per week (260 hauls per year), two 2-yard trash dumpsters at the Fisher House five times per week (260 hauls per year), and one 40-yard open-top trash container at 10701 East Boulevard on an on-call basis (estimated 12 hauls per year), for an estimated total contract value of \$249,116.00 for a single 12-month period of performance from April 7, 2026, through April 6, 2027. The total estimated value of this acquisition is below the \$5,000,000 legislative threshold for SDVOSB sole-source awards, and the requirement has not been split or subdivided to permit the use of this authority.

4. Statutory Authority Permitting Other than Full and Open Competition:

41 USC §3304(a)(5), 38 U.S. Code § 8127(c), as implemented by FAR 6.302-5 (Authorized or Required by Statute). COs may use the non-competitive (sole source) procedures authorized in [VAAR 819.7008 \(DEVIATION\)](#) or [VAAR 819.7009 \(DEVIATION\)](#) up to \$5,000,000. Check the specific VAAR clause used below:

- (X) 819.7008 Sole source awards to a certified service-disabled veteran-owned small business; or
() 819.7009 Sole source awards to a certified veteran-owned small business

5. Demonstration that the Contractor's Unique Qualifications and/or Nature of the Acquisition Requires the Use of the Authority Cited Above (applicability of authority):

The acquisition uses VA's Veterans First Contracting Program authority to make a sole source award to a certified SDVOSB under 38 U.S.C. 8127(c), as implemented in VAAR 819.7008 (DEVIATION) and 819.7003. This authority permits the use of other than full and open competition to award a contract to a certified SDVOSB when it is in the Government's best interest, and a determination that only one SDVOSB can meet the requirement is not required. The selected SDVOSB concern has been verified as eligible in accordance with 819.7003 and has been determined by the Contracting Officer to be a responsible source with respect to technical capability, past performance, and the ability to perform the required municipal solid waste and recycling services without interruption. In accordance with FAR 6.302-5(c)(2)(ii), this sole source SDVOSB award is supported by this written justification and approval prepared and approved in accordance with FAR 6.303 and 6.304, as applicable. Since this is an SDVOSB sole source and not a VOSB sole source, the requirement to show that "no responsible SDVOSB concern has been identified" does not apply; instead, the Contracting Officer has documented that use of the SDVOSB sole source authority is in the best interest of the Government and that the estimated value does not exceed the \$5,000,000 legislative threshold and has not been split or subdivided.

6. Description of Efforts Made to ensure that offers are solicited from as many potential sources as deemed practicable, including whether a notice was or will be publicized as required by FAR Subpart 5.2 and, if not, which exception under FAR 5.202 applies:

The Contracting Officer published a Notice of Intent to Sole Source for this requirement on SAM.gov to ensure public awareness of the planned SDVOSB sole source award and to comply with the synopsis requirements of FAR Subpart 5.2 and VAAR 819.7008. The notice, titled "Notice of Intent to Award a Sole-Source SDVOSB Contract – Municipal Solid Waste and Recycling Services," described the requirement, identified HAMILTON ALLIANCE, INC. as the intended awardee, stated the estimated value and period of performance, and cited 38 U.S.C. 8127 and VAAR 819.7008 as the statutory and regulatory authority. The notice expressly stated that it was informational only, that no solicitation would be issued, and that the Government did not intend to consider or evaluate capability statements or proposals from other vendors in response, and no additional sources were sought or screened as part of this action.

Outside of the public synopsis, market research consisted of confirming the incumbent's eligibility and responsibility as a verified SDVOSB using the SBA/VetCert database and reviewing current and prior contract information for these municipal solid waste services; the Contracting Officer did not conduct a broader sources sought, RFI, or comparative evaluation of multiple SDVOSB/VOSB sources for this specific requirement. This approach is consistent with 38 U.S.C. 8127 and VAAR 819.7008, under which the decision to make an SDVOSB sole source award is a business judgment within the Contracting Officer's discretion when in the Government's best interest, provided the requirement is synopsized and the selected SDVOSB is a responsible source at a fair and reasonable price.

7. Determination by the CO that the Anticipated Cost to the Government will be Fair and Reasonable:

The Contracting Officer has determined that the anticipated cost of this one-year firm-fixed-price contract, in the amount of \$249,116.00, is fair and reasonable based on comparison to an independent Government estimate (IGCE), review of the incumbent's current contract pricing, and evaluation of the offered unit prices against the required level of effort. The IGCE for the 12-month period of performance was \$249,116.00, reflecting expected haul frequencies, container sizes, and

service locations; the SDVOSB's proposed total price matches this IGCE, providing strong corroboration that the price is consistent with the Government's pre-established estimate for these services.

The Contracting Officer also reviewed the pricing under prior contract 36C25025P0978 for the same services and locations, which had a one-year total price of \$225,233.05, and found that the increase to \$249,116.00 for the new period is reasonable in light of inflation, wage and disposal cost escalation, and continuity of the same container configuration and pickup frequencies. In addition, the Contracting Officer analyzed the vendor's detailed unit prices for each haul (by container size, frequency, and location) contained in the successful quote to confirm internal consistency and proportionality to the level of effort across line items. Because this is a commercial-service acquisition under the simplified acquisition threshold and the price is fully supported by the IGCE and recent acquisition history, no certified cost or pricing data, technical cost analysis, or audit is required or anticipated; price analysis based on IGCE comparison, historical pricing, and market research is sufficient to document price reasonableness in accordance with FAR 6.303-2(b)(7) and FAR Part 13.

8. Description of the Market Research Conducted and the Results, or a Statement of the Reasons Market Research Was Not Conducted:

Market research for this acquisition was conducted in accordance with FAR Part 10, VAAR Part 810, and VHAPG Part 810.001 using the VHA Streamlined Market Research and Acquisition Planning Report for Acquisition ID 36C250-26-AP-0268. The requiring activity and Contracting Officer confirmed that the requirement is for commercial municipal solid waste and recycling services available from small business concerns, including SDVOSBs, and documented the estimated contract value of \$249,116.00 for a single 12-month period of performance.

The Contracting Officer used SBA's Veteran Small Business Certification (VetCert) and Small Business Search tools to confirm that HAMILTON ALLIANCE, INC. is a current, verified SDVOSB (and VOSB) under NAICS 562111 with active certification and SAM registration, meeting the eligibility criteria in VAAR 819.7003 (DEVIATION), and noted that approximately 12 SBA-certified SDVOSB/VOSB firms list capabilities in solid waste and related services. No broader sources-sought synopsis or RFI was conducted for this action; instead, market research focused on confirming the incumbent's eligibility and responsibility, reviewing recent acquisition history (contract 36C25025P0978), and evaluating the incumbent's quote and commercial practices for municipal solid waste services to support use of VA's Veterans First SDVOSB sole-source authority. The resulting market research findings concluded that HAMILTON ALLIANCE, INC. is a known, responsible, verified SDVOSB source currently performing the same services at the required locations, that the one-year firm-fixed-price of \$249,116.00 is fair and reasonable for the defined level of effort, and that proceeding with an SDVOSB sole-source award below the \$5,000,000 statutory threshold is in the Government's best interest in accordance with 38 U.S.C. 8127 and VAAR 819.7008.

9. Any Other Facts Supporting the Use of Other than Full and Open Competition:

None. The authority for using other than full and open competition is 38 U.S.C. 8127(c), as implemented by VAAR 819.7008 for sole source awards to verified Service-Disabled Veteran-Owned Small Businesses.

10. Listing of Sources that Expressed, in Writing, an Interest in the Acquisition:

The following sources expressed interest in this acquisition:

HAMILTON ALLIANCE, INC., a verified Service-Disabled Veteran-Owned Small Business (SDVOSB), submitted a quote and is eligible for award under 38 U.S.C. 8127(c) and VAAR 819.7008.

Waste Management of Ohio, Inc. submitted a quote; however, this firm is not an SDVOSB and therefore could not be considered for award under the VA Veterans First SDVOSB sole-source authority for this action.

11. A Statement of the Actions, if any, the Agency May Take to Remove or Overcome any Barriers to Competition before Making subsequent acquisitions for the supplies or services required:

The VA is limiting this action to a single 12-month SDVOSB sole-source award to address the immediate need for uninterrupted municipal solid waste and recycling services while preserving the ability to reassess the acquisition strategy for future years. During this period, the requiring activity and Contracting Officer will monitor performance, validate the Government's requirements (container configuration, service frequencies, and locations), and use the updated requirement and market information to determine whether a follow-on competitive procurement—such as an SDVOSB or VOSB set-aside or other competitive strategy under the Veterans First program—is appropriate for subsequent years. No additional actions to remove barriers to competition are planned for this one-year SDVOSB sole-source action itself, because the use of other than full and open competition is based on 38 U.S.C. 8127(c) and VAAR 819.7008 and is being exercised judiciously for a limited duration; future requirements beyond this 12-month period will be re-evaluated, and a competitive strategy will be considered prior to any subsequent acquisition.

12. Approvals in accordance with the [VHAPM Part 806.3 OFOC SOP](#):

- a. **Contracting Officer or Designee's Certification (required)**: I certify that the foregoing justification is accurate and complete to the best of my knowledge and belief.

Christopher Powell
NCO 10
Indianapolis, IN

Date